

Is Your Store Playing Music Legally?

A quick reference on music licensing requirements for retail businesses

Why This Matters

If your store plays music through speakers and customers can hear it, that's a "public performance" under U.S. copyright law. Playing music from a personal Spotify, Apple Music, or Pandora account in a commercial space violates both copyright law and the platform's terms of service. This applies even if you pay for a premium subscription.

Performing rights organizations (ASCAP, BMI, SESAC, GMR) actively enforce against unlicensed businesses. Fines start at **\$750 per song** and can reach **\$30,000 per song** (\$150,000 for willful infringement). Each song counts as a separate violation.

Real enforcement examples: In 2019, a Denver bar was fined \$27,000 by ASCAP. A Connecticut restaurant paid \$18,000 for playing 9 unlicensed songs. A St. Louis bar permanently closed after a BMI lawsuit. BMI sued over 160 businesses in a single year.

Your Options for Playing Music Legally

Option	Annual Cost	PRO Fees?	Notes
PRO blanket licenses (ASCAP + BMI + SESAC)	\$500 - \$1,500	Included	You manage renewals with each PRO directly. Lets you play any music from any source.
Commercial music service (Soundtrack, CloudCover, etc.)	\$200 - \$600	Bundled	Subscription handles licensing for you. Curated playlists. Easiest setup.
Broadcast AM/FM radio (restrictions apply)	Free	Exempt*	Stores under 2,000 sq ft, max 6 speakers. No streaming, no satellite. You can't control what plays.
Royalty-free music (Epidemic Sound, Artlist, etc.)	\$50 - \$200	N/A	One-time or low subscription. Quality varies. No PRO involvement.
Entuned Free (original composed music)	Free	N/A	Original music composed for retail. No PRO fees, no subscription. Designed for in-store use.

*Section 110(5)(B) of the Copyright Act. Exemption does not apply to streaming services of any kind.

What To Do Right Now

- 1. Check what's playing in your store.** If it's a personal Spotify, Apple Music, or Pandora account, you're not compliant. Same goes for YouTube, SoundCloud, or any consumer streaming platform.
- 2. Pick an option from the table above.** Any of them will get you into compliance. The right choice depends on your budget, how much control you want over the music, and how much setup you're willing to do.
- 3. Make the switch before a PRO finds you.** ASCAP and BMI send field representatives into retail businesses. They'll typically send letters before filing suit, but the letters reference statutory damages. Responding before it becomes a legal matter is always cheaper.